

26STCV03872 26STCV03872

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 26STCV03872 Hearing Date: September 17, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

DREAMSTATION, INC,

Plaintiff,

vs.

STARSHIP, LLC DBA ROCKSTAR SUSHI, et
al.,

Defendants.

Case No.:

26STCV03872

Hearing Date:

September 17, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT

STARSHIP, LLC DBA ROCKSTAR SUSHI'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

Background

Plaintiff Dreamstation, Inc.

(Plaintiff) filed this breach of contract and fraud action against defendants Starship, LLC dba Rockstar Sushi (Defendant) and Rockstar Original on February 5, 2026. Defendant answered on March 12, 2026. Trial is set for May 17, 2028.

On August 11, 2026, Defendant filed the instant motion for leave to file a cross-complaint asserting causes of action against Plaintiff for breach of contract and fraudulent concealment. Plaintiff opposes, arguing Defendant unduly delayed before filing its motion and Defendant's causes of action alleged in the proposed cross-complaint have no merit.

Legal Standard

A defendant

against whom a complaint has been filed may file a cross-complaint setting forth "Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).)

Under Code of

Civil Procedure section 428.50, the defendant must file this cross-complaint "at any time before the court has set a date for trial." (Code Civ. Proc., § 428.50, subd. (b).) If the defendant fails to file the cross-complaint within this timeframe, he must obtain leave of court. (Id., § 428.50, subd. (c).) The court may grant leave "in the interest of justice at any time during the course of the action." (Ibid.)

In other

words, the Court may grant a motion for leave to belatedly file a cross-complaint if it finds the causes of action in the cross-complaint arise from the same transaction or occurrence as the causes of action in the complaint, and that doing so would be in the interests of justice. "Permission to file a permissive cross-complaint is solely within the trial court's discretion." (Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.

Discussion

The motion is granted.

Defendant's proposed cross-complaint arises from the same sales arrangement as Plaintiff alleged in the complaint. Undue delay is not grounds to deny leave to amend unless there is prejudice to Plaintiff; this case is set for trial in May 2028, and Plaintiff identifies no specific prejudice it will suffer except the resources expending litigating Defendant's cross-complaint. This argument and Plaintiff's objection to the merits of Defendant's cross-complaint requests that the Court adjudicate the merits of the proposed causes of action prematurely. Plaintiff contends Defendant has contradicted its own claims in its discovery responses; this is not a basis to deny leave to file the cross-complaint.

Conclusion

Defendant's Motion for Leave to File
Cross-Complaint is GRANTED.

Defendant is ordered to provide notice
of this Order and file its Cross-Complaint within 10 days of the date of this
Order.

DATED: September 17, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court